

invest in the shares of a company, the trustees may not sell out and invest in the shares of a company which requires the shares to be held by a *single person*. But if shares in such a company be specifically bequeathed to three trustees, they are justified from the nature of the case in taking the shares in the name of *one* of themselves (*c*).

35. **Exchequer bills.**—Where monies paid into Court were directed by an Act to be invested in “Three per cent. Consols, or Three per cent. *Reduced, or *any Gov- [*321] ernment securities,*” the Court refused to allow an investment on Exchequer bills as not within the meaning of the Act (*a*); but where a trustee had engaged to lend a sum upon mortgage, which was authorised by the powers of the will, and instead of leaving the money idle at his bankers’, laid it out in Exchequer bills as a temporary investment, and productive of interest with little fluctuation of value during the interval while the mortgage was in preparation, the Court held that such a dealing with the funds was justifiable (*b*); and it has since been ruled that Exchequer bills do fall within the description of Government securities (*c*); and they are now expressly authorised as an investment by 23 & 24 Vict. c. 38, s. 11, and the general order before mentioned.

36. **Foreign securities.**—Stock of the United States, and even the bonds and debentures of the particular states, come under the description of “*foreign funds,*” but not so the bonds or debentures of municipal towns or railway companies abroad (*d*). [And where a power was given to trustees to invest “upon any of the stocks or funds of the Govern-

(*c*) *Consterdine v. Consterdine*, 31 Beav. 330; and see *Mendes v. Guedalla*, 2 J. & H. 259; [*Lewis v. Nobbs*, 8 Ch. D. 591.]

(*a*) *Ex parte Chaplin*, 3 Y. & C. 397.

(*b*) *Matthews v. Brise*, 6 Beav. 239. But the trustee having left the Exchequer bills in the hands of the broker for more than a year, and without being earmarked, and the broker hav-

ing disposed of the Exchequer bills for his own purposes, and become bankrupt, the trustee was, on *that ground*, made responsible for the value of the bills at the date of the bankruptcy, with four per cent. interest.

(*c*) *Ex parte South Eastern Railway Company*, 9 Jur. 650.

(*d*) *Ellis v. Eden*, 23 Beav. 543; *Re Langdale's Settlement Trust*, 10 L. R. Eq. 30.